

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 14
JUDICIAL OFFICER: KIRK ATHANASIOU
HEARING DATE: 09/15/2026

For matters where an appearance is required, the parties should appear by Zoom unless told to appear by another method. For all other matters, if argument is requested appearances may be in person or by Zoom.

Please email Dept14@contracosta.courts.ca.gov and opposing counsel by 4:00 p.m. if oral argument is requested, the requesting party shall specify the issues to be argued.

Zoom hearing information

<https://contracosta-courts-ca.zoomgov.com/j/16103009385?pwd=TjFZRDBnNkVQRlV0Znhvai9qT05tZz09#success>

Law & Motion

1. 9:00 AM CASE NUMBER: L24-07932
CASE NAME: NORTHSTAR EDUCATION FINANCE, INC. VS. DOMINIQUE THOMAS
***HEARING ON MOTION IN RE: MOTION TO SET ASIDE DEFAULT AND DEFAULT JUDGMENT AND QUASH SERVICE OF SUMMONS FILED BY DEF. ON 04/20/2026**
FILED BY: THOMAS, DOMINIQUE
TENTATIVE RULING

Defendant moves to set aside the default judgment entered against her on October 2, 2025.

Plaintiff argues that defendant was served by substitute service. However, the documents that support that assertion are contradictory. Two documents, filed on March 6, 2025 make different assertions about that. One says that an unnamed person was served on December 30, 2024 at 9:35 a.m. The other says that Anna Ferrier, “front desk,” was served on January 8, 2026 at 11:39 a.m. Nothing in plaintiff’s opposition addresses that discrepancy. It is unlikely that both are true and that casts serious doubt on the veracity of both.

Defendant declares, in a sworn statement, that she received no notice of the service. Her statements, taken together, are sufficient to provide evidence that is the case.

Under CCP 473.5 defendant’s request is timely.

The motion is granted.

2. 9:00 AM CASE NUMBER: L25-00652
CASE NAME: CROWN ASSET MANAGEMENT, LLC VS. JUSTINA BANAGA

***HEARING ON MOTION IN RE: NOTICE OF MOTION AND MOTION FOR ENTERING JUDGMENT FILED BY PLTF. ON 05/11/2026**

FILED BY: CROWN ASSET MANAGEMENT, LLC

TENTATIVE RULING:

The motion is unopposed and properly supported. It is, therefore, granted.

3. 9:00 AM CASE NUMBER: L25-02002

CASE NAME: DISCOVER BANK VS. LISA KLEIN

***HEARING ON MOTION IN RE: NOTICE OF MOTION AND MOTION TO ENTER JUDGMENT PURSUANT TO STIPULATION**

FILED BY:

TENTATIVE RULING:

The motion is unopposed and properly supported. It is, therefore, granted.

4. 9:00 AM CASE NUMBER: L25-03269

CASE NAME: CAPITAL ONE N.A. VS. DOUGLAS LINARES

***HEARING ON MOTION IN RE: MOTION TO BE RELIEVED AS COUNSEL FILED BY DEF'S COUNSEL ON 05/07/2026**

FILED BY: LINARES, DOUGLAS

TENTATIVE RULING:

The motion is denied without prejudice. Counsel has failed to fill in section 3.b on the Form MC-052.

In addition, the Court notes that the moving papers refer to Los Angeles Superior Court and (although not relevant to the disposition of this motion) say "defendant was removed from the program..." without explaining what that means, or why that might be relevant.

5. 9:00 AM CASE NUMBER: L25-06712

CASE NAME: JPMORGAN CHASE BANK, N.A. VS. BRUCE BABCOCK, JR.

***HEARING ON MOTION IN RE: MOTION TO VACATE DISMISSAL & ENTER JUDGMENT UNDER TERMS OF STIPULATED SETTLEMENT FILED BY PLTF. ON 05/14/2026**

FILED BY: JPMORGAN CHASE BANK, N.A.

***TENTATIVE RULING 🗨️**

The motion is unopposed and properly supported. It is, therefore, granted.

6. 9:00 AM CASE NUMBER: L25-07985

CASE NAME: CAPITAL ONE, N.A. VS. ALVIN KUMAR

***HEARING ON MOTION IN RE: MOTION TO BE RELIEVED AS COUNSEL FILED BY PLTF'S DEF'S ON 05/13/2025**

FILED BY: KUMAR, ALVIN

TENTATIVE RULING: